No. 25-0792

IN THE SUPREME COURT OF TEXAS

State of Texas, Petitioner

v.

F.M.V., a Juvenile, Respondent

On Review from Case No. 08-24-00077-CV in the Eighth Court of Appeals, El Paso, Texas; and on Appeal from the 65th District Court, El Paso County, Texas; Cause No. 2100093

PETITION FOR REVIEW

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IDENTITIES OF PARTIES AND COUNSEL

Trial Court Judge: Hon. Yahara Lisa Gutierrez, Judge, 65th District Court, 500 E. San Antonio, Suite 1105, El Paso, TX 79901.

Respondent/Appellee F.M.V. represented by: Kelli Childress, Public Defender; Rene Alberto Vargas, Deputy Public Defender; Todd Morten, Deputy Public Defender; 500 E. San Antonio Avenue, Suite 501, El Paso, Texas 79901.

Petitioner/Appellant, the State of Texas, et al., represented by: Christina Sanchez, County Attorney; Katrina Ayala, Assistant County Attorney; April Galvan, Assistant County Attorney; Christina Sanchez, County Attorney, Appellate Counsel; Kevin McCary, Assistant County Attorney, Appellate Counsel; Amanda D. Frizzelle, Assistant County Attorney, Appellate Counsel; 320 S. Campbell Street, Suite 200, El Paso, Texas 79901.

Record references: Reporter's Record = R.R. + Page + Line No. ("ln"); Clerk's Record = C.R. + Page.

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STATEMENT OF THE CASE

Nature of the Case: This is a civil juvenile prosecution under the Texas Family Code.

Trial Court Judge: Yahara Lisa Gutierrez.

Trial Court: 65th District Court, El Paso County, Texas.

Course of the Proceedings: The State charged the juvenile via a determinate sentence petition with five counts of deadly conduct, discharge firearm, in civil proceedings in the 65th District Court, a designated juvenile court. (C.R. 44-46). A jury adjudicated him delinquent on all five counts on March 22, 2024. (C.R. 229-233). The trial court conducted a disposition hearing and sentenced him to three years in the Texas Juvenile Justice Department. (C.R. 244-246). This appeal followed.

Trial Court Disposition: The trial court adjudicated the juvenile delinquent and ordered him to serve three years in the Texas Department of Juvenile Justice. (C.R. 244-246).

Parties in the Court of Appeals: F.M.V. (the juvenile) and the State of Texas.

Appellate Court District: 8th Appellate District.

Appellate Justices: Soto, Palafox, Salas-Mendoza.

Citation of the Appellate Opinion: In re F.M.V., No. 08-24-00077-CV, 2025 WL 2146682 (Tex. App.—El Paso 2025, pet. filed).

Appellate Court Disposition: The Eighth Court of Appeals reversed and remanded the case for further proceedings. *In re F.M.V.*, No. 08-24-00077-CV, 2025 WL 2146682 (Tex. App.—El Paso 2025, pet. filed). No hearings or motions are pending before the Court of Appeals. The State now petitions the Supreme Court to review the opinion and judgment of the Court of Appeals.

STATEMENT OF JURISDICTION

This Court has jurisdiction over this appeal because the issue raised is important to the jurisprudence of the state, and it has already been considered by a court of appeals. Tex. Gov't Code § 22.001(a), (b).

The decision merits review because the appeal raises an issue of first impression as to the proper interpretation of Tex. Fam. Code § 51.095. In its construction of the statute, "[t]he court of appeals appears to have committed an error of law of such importance to the state's jurisprudence that it should be corrected." Tex. R. App. P. 56.1(5). The Eighth Court of Appeals has also decided an important question of state law that should be resolved by this Court. *See id.* 56.1(6).

ISSUE PRESENTED

In Texas, a juvenile statement must be signed in the "presence of a magistrate," with "no law enforcement officer … present" for the juvenile's statement to be admissible in evidence. A juvenile signed an incriminating statement in front of a magistrate. Officers were within the magistrate's line of sight but unable to hear the conversation, and the juvenile was not exposed to any words or actions on the part of the police. Did the trial court commit reversible error by admitting the juvenile's signed statement into evidence?

STATEMENT OF FACTS

A. The Shooting

On November 22, 2022, Officers were dispatched to a call in Canutillo, Texas. (R.R. Vol. II at 160:1). Maria De Los Angeles Ramirez and Leonardo Ramirez Torres were present when more than thirty bullets struck and entered their home. (R.R. Vol. III at 54:24-55:6). Torres was the only one injured by the shots fired; a piece of metal entered his eye. (R.R. Vol. III at 58:25). When he arrived at the scene, El Paso County Sheriff's Detective Bastardo observed several gunshot holes in the residence and shell casings on the street. (R.R. Vol. III at 78:16-78:18).

Through the course of their investigation, officers learned that an altercation between F.M.V.'s friends and Leonardo Ramirez, Maria De Los Angeles Ramirez's son, occurred at the outlet mall prior to the shooting; threats were made to Leonardo Ramirez. (R.R. Vol. III. at 78:7-78:12). El Paso County Sheriff's Detective Bastardo located a surveillance video showing a white Dodge Charger which was the suspected vehicle involved in the shooting. (R.R. Vol. III. at 81:3-81:5; State's Exhibit 29). Andre Gilmer, an adult co-actor, was identified to be the driver of the white Charger; Detectives received several names of individuals involved, including F.M.V. (R.R. Vol. III. at 84:15).

A search warrant led to the weapons used; the co-actor was arrested; and a ballistic analysis was conducted. The weapons collected from the co-actor matched the casings found at the scene. (R.R. Vol. III at 89:22-89:23). A few days later, Detective Bastardo met with F.M.V.'s mother, Itza Varela. Varela had reported him as a runaway, and she wanted to provide information to Detective Bastardo regarding the shooting. (R.R. Vol. III. at 37:19-37:22). Detectives also spoke with F.M.V.'s girlfriend, Alexis Sigala, and she stated he sent her a video of the shooting on the day of the offense and he admitted to her that he was involved in the shooting. (R.R. Vol. III at 90:23-90:25).

B. F.M.V.'s Detention and Magistration.

On December 1, 2022, F.M.V. was detained and taken to the Northwest Patrol station where he received his *Miranda* warnings and asked if he wanted to provide a statement. (R.R. Vol. III at 104:13-105:9). F.M.V. was then taken to the jail magistrate.

The jail magistrate, Judge Sara Priddy, administered his *Miranda* warnings. (R.R. Vol. III at 107:5-107:6). Detective Bastardo and his partner were positioned at a distance from both F.M.V. and the magistrate, having no direct involvement in the process of reading or explanation of F.M.V.'s rights. (R.R. Vol. I at 9:21-25). Judge Priddy read his rights, one by one, and asked him questions to ensure he understood. (R.R. Vol. I at 12:13-13:9).

Detective Bastardo took F.M.V. to the Juvenile Probation Department to obtain his statement. (R.R. Vol. III at 104:15). At the Juvenile Probation Department, F.M.V. provided a statement admitting his involvement in the shooting, and the statement was typed and printed. (R.R. Vol. III at 110:22-113:1).

After the statement was complete, F.M.V. was taken back to Magistrate Priddy, where she reviewed the statement with him. (R.R. Vol. III at 105:7-105:9). While reviewing the statement with the magistrate, F.M.V. made a correction to the statement; he stated to the magistrate that one line was not his statement, and that

line was crossed out and initialed by the magistrate and F.M.V. (R.R. Vol. III at 108:6-108:10). Magistrate Priddy and F.M.V. subsequently signed the statement, and he was released back to Detective Bastardo's custody.

C. Trial and Disposition.

F.M.V. was referred to the Juvenile Probation Department on five counts of Deadly Conduct Discharge Firearm. (R.R. Vol. III at 109:1-109:2). F.M.V. was tried by a jury in the 65th District Court on March 19, 2024; the jury found F.M.V. delinquent on all five counts of Deadly Conduct Discharge Firearm. (C.R. at 234). F.M.V. elected for the trial judge to decide the disposition; on March 22, 2024, the court sentenced him to three years commitment to the Texas Juvenile Justice Department. (C.R. at 244).